THE LETTERS OF THE RAMBAM

# Why No Names, No Sources? The Rambam Defends the Mishneh Torah

Letter to Rav Pinehas, Part 2

**Source:** Igrot HaRambam: the letter to **Rav Pinchas ben Meshullam HaDayan** of Alexandria (Hebrew original, Shilat edition), Section 2

**Shiur:** Given by Dayan Daniel Kada on Zoom, Tuesday 25 March 2025

*These notes are based on the Sofer.ai transcript of the recording.*

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## Recap

The series so far: the letters to **Ovadia** the convert in Jerusalem, to the **sages of Montpellier** on astrology, to **Ibn Jabbar** in Iraq, and the letter on **martyrdom**. Now the fifth: to **Rav Pinchas HaDayan**, who moved from **Provence** to become dayan of **Alexandria**, and whose relationship with the Rambam was **strained**. Written **c. 1185–1195**.

The letter has **five parts**:

| Part | Content | When |
|---|---|---|
| 1 | "I was ill, not ignoring you." But I **was** angry that you **caved in to the masses** and preached the "severity" of washing after an emission, **a custom**, when the law permits | Last week |
| 2 | **The purpose of the Mishneh Torah**: "the main part of the letter" | **Tonight** |
| 3–5 | Shorter, more technical sections | Next week |

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## Background: What the Mishneh Torah Was

"His *magnum opus* is certainly the Mishneh Torah. **There was no one like him to do anything like it before him, and no one has done anything like it since.**"

### The problem it solved

The **Talmud is a discussion**. Many things come up that aren't relevant to the point, and the laws of any one topic are **scattered across Shas**.

### The Rif came closest, but it isn't the same

**Rav Yitzchak Alfasi** (the **Rif**), from North Africa, a century or more before the Rambam, **abridged the Talmud**, keeping only the halachic material. But it still follows the **Talmud's order**:

| | Rif | Mishneh Torah |
|---|---|---|
| **Method** | Goes through the Talmud tractate by tractate, keeping the halachah | **Reorganises** all of halachah by **topic** |
| **To learn all the laws of Shabbat** | Tractate Shabbat in the Rif contains material **not** about Shabbat, and **misses** Shabbat laws found **elsewhere** in Shas | **One section**: Hilchot Shabbat |
| **Sources** | The Babylonian Talmud | **Bavli, Yerushalmi, Sifra, Sifrei, Tosefta, baraitot**: all of rabbinic literature |
| **Shape** | An abridged Talmud | **Fourteen books** of clear rulings |

### Controversy

His books were later **burnt**, "but that was more because people didn't like the Rambam's **philosophy** in other works." Here, by contrast, Pinchas criticises **the Mishneh Torah itself**.

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## Pinchas's Four Criticisms

The Rambam quotes Pinchas: *your Mishneh Torah is wonderful, but only for those who already know Talmud and the names of the Sages.*

| # | Criticism |
|---|---|
| 1 | **You don't name the Sages.** The Mishnah and Gemara are full of *Rabbi Yehudah says, Rabbi Meir says*; you never say who said what |
| 2 | **People misread your book and err in halachah** |
| 3 | **You don't make clear that Talmud study is essential.** People think the Mishneh Torah is enough. You should **preach** that they mustn't neglect the Talmud |
| 4 | **You give no sources.** How do I know you're right? I find laws whose source I can't locate |

**Behind criticism 3:** the Rambam's own introduction says that one who learns **Torah sheBichtav** and then **his book** will know the whole Oral Law, which is why it's called **Mishneh Torah**, the "second Torah."

"Some of these criticisms recur **over and over throughout the generations**." As recently as a generation ago, **Chabad**, for whom **daily study of the Mishneh Torah** is central, was criticised by **Rav Shach** for the same reason: *it isn't enough to study the Rambam; study the Talmud.*

"So the Rambam addresses it in black and white here, and that's why this is such a crucial letter."

### The opening rebuke

I have to **tell you off**. **I know deep down how you feel about me**, even if you didn't say it: **you don't give weight to who I am and what I've written.**

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## Answer to Criticism 3: "I Never Said Don't Study Talmud"

**Hashem is my witness**: around where I live, **only two or three people** are studying parts of my Mishneh Torah. **Most of my students I've taught the whole Rif.** Whoever asked me to learn **Talmud** with them, I learned whatever they wanted.

"Imagine asking the Rambam, *I want to learn Talmud with you*, and he says *yes, sure*."

Did I ever ask, or think, that **every earlier book is no longer relevant** and only mine should be learned? I wrote at the start of the Mishneh Torah that it's **for those who don't have the time**, or the capacity to work through the Talmud. For them I made **a *kitzur***, the plain halachah. **But I never, *chas veshalom*, said don't study Talmud.**

### A tension to note

In **another letter**, to his translator **Ibn Tibbon** (to be learned in the summer), the Rambam **does** seem to suggest that people **waste their time** on the Talmud's dialectic: "I'm not saying these words lightly." "We will try to understand that when we learn that letter." **Here**, though, he is unequivocal: people **must** study Talmud, and that's what he teaches.

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## Answer to Criticisms 1 and 2: No Names, and Misreadings

### a) "I listed them all at the start"

The **introduction to the Mishneh Torah** traces the whole **chain of tradition**, generation by generation. "We've never done this together; we will, with Hashem's help." **I listed all the names there in order. Why repeat them?**

### b) "No one has done what I did since Rabbeinu HaKadosh"

There were **many books before me** that abridged halachah, in **Hebrew and in Arabic**. But **no one since Rabbi Yehudah HaNasi**, who wrote the Mishnah, has done what I did: condense **all** of halachah into clear statements.

**On misreadings:**

"When you write a book, **I can't walk around with it explaining it to everyone.** You write it, you give it out, people make mistakes. **It's their problem.**"

### c) *Chibbur* versus *perush*: the heart of the answer

**Anyone who writes a book, in Torah or any other discipline, Jewish author or not, takes one of two approaches.**

| | ***chibbur*: composition ,חיבור** | ***perush*: commentary ,פירוש** |
|---|---|---|
| **What it is** | Your **own** composition, to the point | Explains, **dissects and analyses** an earlier text |
| **Contents** | **Only the correct points**: no questions, no answers, no proofs. "The dry facts" | The correct view **and** the contradictory ones, **questions on each**, the **answers**, and the **proofs** that this view is right and that one wrong |
| **Model** | **The Mishnah**: Rabbi Yehudah HaNasi gathered the views and said *this is the halachah* | **The Talmud**: the Amoraim commenting on the Mishnah. (Likewise **Rashi** on Shas) |
| **The Mishneh Torah** | ✔ "I wanted it **in the way of the Mishnah**" | ✘ |

**You didn't pay attention to what I wrote. You don't understand the difference between Mishnah and Gemara.** That's why you keep writing that you find laws in my book whose source you don't know.

He softens it with a title (*"my chieftain"*), "I'm respecting you, giving you nice titles, **but you haven't understood**."

### d) "But the Mishnah does quote names!"

The obvious challenge: the Mishnah often says *this Rabbi says, that Rabbi says.* The Rambam explains **why**, "an important principle when learning Mishnah":

1. **Most mishnayot have no names at all.** A **סתם משנה**, an **anonymous** Mishnah, is **authoritative**: that is the halachah.
2. **Even named statements don't trace the chain.** Rabbi Meir got his teaching from his teacher, and he from his; the Mishnah never lists the chain back.
3. **Rabbi sometimes merged two Sages' views** he thought correct into **one anonymous mishnah**, without saying where each came from.
4. **He named Sages only where he was unsure of the halachah *and* communities followed different views.** Naming them showed that **each practice had authority** (Rabbi Meir's, Rabbi Shimon's), so **those following it shouldn't be castigated**.

**The proof: Mishnah Eduyot, chapter 1.** Why record **Shammai**, or **one Sage against the majority**, if the law doesn't follow them? So that a **beit din** or community following that minority view has an **authority to rely on**.

### e) Why that doesn't apply now

In the Mishnah's time, **some communities did this and some did that**. Once the **Talmud was sealed**, there is **one Jewish approach**; **the vast majority of the vast majority** practise it. There are no longer two camps.

### f) Names invite people to reject the law

If I wrote *this law comes from Rabbi X*, people would say **"that's his opinion; I don't have to follow it,"** and they'd be **בועט**, kick against it. All Israel **accepted the Talmud**, and so its Sanhedrin-level

authority. **I want every halachah to appear to the one studying it as *the* halachah**, **stam, divrei hakol.** Not "he thinks this, he says that." **This is the law. Follow the law. Full stop.**

### Summary of his answer on names

| # | Answer |
|---|---|
| 1 | **All the names are in the introduction** |
| 2 | **I wrote a *chibbur***, a composition like the Mishnah, **not a *perush*** like the Talmud |
| 3 | The Mishnah named Sages **only where communities followed differing valid views**; since the Talmud, **all Israel follows one halachah** |
| 4 | **Names would let people dismiss the law** as one man's opinion |

"You criticised me because you **misunderstand my purpose**. If you'd taken a bit more time to understand, you wouldn't have this problem."

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## Answer to Criticism 4: "Where Are Your Sources?"

"Perhaps the most amazing part of the letter." Pinchas had implied the Rambam **wrote things from his own mind and passed them off** as established law.

**I never did any such thing. Open your ear and your wisdom and pay attention.**

### The Rambam's own key to his book

| How it's written | Where it comes from |
|---|---|
| **Stated plainly**, no qualification | **Certainly from the Sages**: **Bavli, Yerushalmi, Sifra, Sifrei, Mishnah, Tosefta**, the halachic works of Chazal |
| **"The Geonim ruled…"** | From the **Geonim** (c. 650–1000 CE; "like we learned on Monday nights") |
| **"It seems to me…" / "From this I deduce…"** | **My own conclusion**, labelled as such |

**So what's your problem? Why should I write the sources? Look in the Talmud.**

### What Pinchas *should* have said

What you should have said is that **you sometimes can't remember where the source is**. That happens to rabbis. **Only great rabbis like you** (the barb and the compliment together) can appreciate **how much toil I put into this book**.

### "Not like the Rif. I swear."

Most people think my work is **like the Rif's**: that I abridged, removed the questions and answers, and gave the conclusion. **That's not what I did, I swear.**

**The scale:** 14 books, each of roughly **10 sections**, each of roughly **10 chapters**, and **a single chapter is sometimes drawn from ten places** in rabbinic literature.

"To write a chapter with **the entire framework of Chazal** in mind, and select *this goes here, that goes there*. Who can do that? That's incredible."

**I didn't follow the order of the Talmud. I gathered everything together so that it would no longer be scattered**, so you can find it in **one place**. That was my whole purpose.

**It's impossible for anyone in the world to remember the entire Talmud constantly.** When I had it all in my head (Bavli, Yerushalmi, Sifra, Sifrei), **I put it together**, sometimes from ten different places for one chapter.

## The story of the dayan and the law of murder

A certain **dayan** came to me (older, apparently: he speaks down to him) holding the **Book of Damages**, open at the **laws of murder**. He showed me a law: **"What's your source?"**

| Where the Rambam looked | Result |
|---|---|
| **Makkot** and **Sanhedrin**, where laws of murder belong | Went through **all of both**. Not there |
| **The Yerushalmi** | Not there. "I was very shocked, confused" |
| **Gittin**: "it must come up incidentally in the laws of divorce" | Not there either. "**I was really astonished at myself.** Where did I get this from?" |
| "Please give me a moment." **The dayan left, and immediately I remembered** | Sent someone to **bring him back**, and showed him: it came **incidentally**, in a tractate dealing with **marriage**. The dayan was astonished, and left |

## "I always get scared"

**Whenever people ask me "what's your source?", I get scared and upset.** Sometimes I answer at once: *look in this tractate.* **Sometimes I don't know until I search for it.** If even **I** can't remember, what will others do?

**How do I console myself? I remind myself that that wasn't the purpose.** My purpose was **the dry laws, all the scattered laws together in one place.**

## The book he planned and never wrote

**With Hashem's help, I plan another book giving the sources for every law**, though it will be **very cumbersome**.

**The plan:**

- A law in **Hilchot Shabbat** sourced in **Tractate Shabbat** gets **no citation**: "157 pages of Shabbat; **go and find it yourself**."

- A Shabbat law sourced **elsewhere in Shas** gets a citation: *this halachah stems from this tractate, that page.*

- **A separate book**, because putting sources **in** the Mishneh Torah would **ruin its purpose**: it is a *chibbur*, not a *perush*.

I repeat: **everything in the Mishneh Torah comes from Bavli, Yerushalmi, Tosefta, Sifra or Sifrei.** It's hard to find because **the Talmud's rules are scattered. Full stop.**

The Rabbi noted in passing: the Rambam calls the Pesach laws **Hilchot Chametz uMatzah**, while the **Shulchan Aruch** calls them **Hilchot Pesach**, "interesting in itself." Under the plan, a law there drawn from **Pesachim** would go unsourced; one drawn from elsewhere would be cited.

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## The Irony: The Most-Commented Book of the Rishonim

**Did the Rambam write that book? No.** But **dozens did it for him**:

| Commentary | |
|---|---|
| **Kesef Mishneh** | Rav **Yosef Karo** (author of the Beit Yosef) |
| **Maggid Mishneh** | |
| **Rabbeinu Manoach** | |
| **Lechem Mishneh** | |
| …and many more | Each trying to find the sources |

"I'm almost sure this is correct. Yes, I say this with confidence: **there is no book of the Rishonim**, maybe Rashi aside, **with as much commentary on it as the Mishneh Torah.**" The Rif and the Rashba have a few; but **the Ra'avad** was already writing on the Rambam right away, "and then on and on."

"**This is the funny thing.** The Rambam made a book where all you need is *the Torah and my book*. Now you learn his book, and **around it are tens and hundreds of commentaries.**"

**Why?** Because **he never wrote the source book**. Much of the debate over the Rambam is **what his source was**, because **what he means depends on where he took it from**. One commentator says it's from here, so he means this; another says from there, so he means that, **and you get a *machloket* over the Rambam's meaning.** Had he written the sources, **much of that would evaporate**.

One of the Rabbi's teachers: **"If the Rambam had known what they would do to his book, he wouldn't have written it."** "The whole purpose was a clear *this is it, open it, that's it*."

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## Takeaways

### Learn the Mishneh Torah, in order

If you've never studied it in order, **try to find the time and complete it**: once a week, once a day, **one or two halachot**. Especially for someone without much time for halachah or Talmud. **"If you know the Mishneh Torah inside out, you basically know the whole Torah."**

### A test of authority

Since **all of Chazal** is condensed into those 14 books, **anything you never came across in the Mishneh Torah is not from Chazal**. Someone else said it, and **it doesn't carry the same authority**.

**Kitniyot**: there's **no mention at all in the Rambam**. It came in around the **1300s**, after him. So "**it can't have the same *tokef***, the same power and authority. **The only thing that binds us is the Torah and the Sages of the last Sanhedrin**: anything in the Bavli and Yerushalmi binds us. Other things are **a notch down**."

*(The recording was paused for part of this discussion.)*

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## Summary

1. **Pinchas's four criticisms:** no **names**, people **err**, it discourages **Talmud** study, no **sources**.
2. **Talmud:** "Hashem is my witness": only two or three around him study the Mishneh Torah; **he teaches the Rif and Talmud** to the rest. The book is a ***kitzur* for those without the time**, never a replacement. (Contrast the letter to **Ibn Tibbon**, to come.)
3. **Names:** listed in the **introduction**; the book is a ***chibbur*** like the **Mishnah**, not a ***perush*** like the Talmud. The Mishnah named Sages only where **communities followed different valid views** (Eduyot 1). After the Talmud, **one halachah for all**, and names would invite people to **dismiss the law** as one man's view.
4. **Misreadings:** an author **can't walk around explaining his book**. No one since **Rabbi Yehudah HaNasi** attempted this.
5. **Sources: plain statement = Chazal; "the Geonim" = Geonim; "it seems to me" = my own.** Chapters drawn from **ten places**; **no one can hold the whole Talmud in mind**. The **story of the law of murder**: even the Rambam sometimes **couldn't find his own source**, until he did.
6. **The unwritten source book**: planned, never written; so the **Kesef Mishneh, Maggid Mishneh, Lechem Mishneh** and countless others did it, making it **the most-commented work of the Rishonim**.
7. **Practical:** learn the Mishneh Torah **in order**; what isn't in it **isn't Chazal** (e.g. **kitniyot**).

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## Coming Up

**Next week, 8–9, the final shiur of the season: Sections 3–5.** Pinchas complains the Rambam said publicly that **"the dayan of Alexandria knows nothing and doesn't know Talmud,"** and never answered his questions. Shorter, more technical sections; then five letters complete, **January to March**, with a new series after Pesach.

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